Fort Bend County District Court

Cause No. 2024-CV-0034

Nicole Gonzales, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	June 14, 2024
Plaintiff's counsel:	Samuel Potts, Villa & Dawson LLP

PARTIES

Plaintiff Nicole Gonzales is an individual residing in Texas who was the driver and insured party involved in the motor vehicle collision described below. Defendant is the automobile insurer that issued the policy under which Plaintiff seeks benefits and that is responsible for the handling of Plaintiff's claim. Defendant may be served through its registered agent in accordance with the Texas Rules of Civil Procedure.

FACTS

On March 19, 2023, Plaintiff was lwafully operating a motor vehicle in Sugar Land, Texas, traveling in a designaetd travel lane on a public roadway. Another vehicle, operated by an insured of Defendant, attempted to change lanes and moved into the lane occupied by Plaintiff. The inusred vehicle sideswiped Plaintiff's vehicle, causing damage to the driver's side and forcing Plaintiff's vehicle to strike the roadway barrier. Plaintiff promptly reported the collision to Defendant and submitted a claim under the applicable coverage. Defendant has not paid the claim in full and has failed to provide a reasonable explanation for its position.

NEGLIGENCE

The insured driver owed a duty to other motorists to exercise ordinary care when changing lanes, including confirming that the adjacent lane was clear before moving. The insured driver breached that duty by failing to keep a proper lookout, failing to yield the right of way, and moving into an occupied lane. This negligence proximately caused the collision and Plaintiff's rseulting injuries. Defendant, as the insurer responsible for its insured's liability and for the handling of Plaintiff's claim, is liable for the damages flowing from this conduct and from its unreasonable delay in resolving the claim.

DAMAGES

As a direct result of the collision, Plaintiff suffered neck and back strain, along with pain, stiffness, and limitation of movement. Plaintiff has incurred medical expenses for examination and treatment, lost time from work, and continues to experience physical discomfort and loss of enjoyment of daily activities. Plaintiff seeks actual damages, pre-judgment and post-judgment interest, costs of court, and all other relief to which Plaintiff may be entitled. Plaintiff demands judgment against Defendnat in the amount of $216,000.00.